
Appeal Decision

Site visit made on 3 August 2026 by J Kirkaldy BSc (Hons) PGDip MRTPI

Decision by Martin Seaton BSc (Hons) DipTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 8th September 2026

Appeal Ref: 6009587

The Meadows, High Street, Chelmsford, Essex CM2 6FD

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 (as amended) against a refusal to grant express consent.
 - The appeal is made by Property Manager of Smart Outdoor Ltd, against the decision of Chelmsford City Council.
 - The application Ref is 26/00190/ADV.
 - The advertisement proposed is for an internally illuminated 2 sided digital signage totem.
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Decision

1. The appeal is dismissed.

Appeal Procedure

2. The site visit was undertaken by a representative of the Inspector whose recommendation is set out below and to which the Inspector has had regard before deciding the appeal.

Preliminary Matters

3. I have taken the description of the advertisement from the Council's decision notice as this provides a fuller, more accurate description than the one provided on the application form.
4. Having reviewed the most recent changes to the National Planning Policy Framework (the Framework), I am satisfied that they do not affect the substance of the main issue in the appeal. Since they would not therefore be prejudiced, I have proceeded without further consultation with the main parties.

Main Issues

5. The main issues are;
 - the effect of the proposal on the visual amenity of the area, including the setting of the Chelmer and Blackwater Navigation Conservation Area (CA); and,
 - the effect on public safety with particular regard to highway safety.

Reasons for the Recommendation

Amenity

6. The Planning Practice Guidance sets out that in practice 'amenity' is usually understood to mean the effect of an advertisement on visual and aural amenity

within the immediate neighbourhood. In assessing amenity, regard should be had to the general characteristics of the locality, including the presence of historic, architectural, cultural or similar features of interest.

7. The appeal site comprises part of a surface car park and would occupy an existing parking bay close to the vehicular entrance. It is adjacent to High Bridge Road, a bridge crossing the Rivers Can and Chelmer, which forms an important route linking Springfield Road and Parkway. The surrounding area is predominately commercial in character, with the car parks serving the city centre and Meadows Shopping Centre.
8. The site lies immediately adjacent to, but outside the CA. The Chelmer and Blackwater Navigation Conservation Appraisal (the CAA) published in draft form for consultation in 2009, identifies features that contribute to the significance and special interest of the CA. The historic waterway, which extends through neighbouring districts, resulted in Chelmsford's expansion and development as an industrial centre from the late eighteenth century. It is significant for its structures, including 13 locks, landscape character, leisure and recreational value.
9. The CAA describes High Bridge Road as a dominant, elevated concrete structure that detracts from views westwards towards the town centre and eastwards towards the water meadows. Nevertheless, it also acknowledges that the bridge provides an elevated vantage point, affording expansive views across the river valley. In this context, the proposal would be readily visible from within the CA and in views towards it.
10. High Bridge Road is relatively free from advertisements, aside from a limited amount of highway signage, including some digital information signs, and commercial signage associated with nearby buildings. Although the surrounding area is characterised in part by commercial development, there remains a notable sense of spaciousness within the townscape. This is attributable to the elevated position of the bridge, the presence of the rivers and areas of open surface parking that provide visual relief and breaks within the built form. The absence of significant advertising clutter further reinforces the area's sense of openness resulting in a coherent, legible, and uncluttered street scene that contributes positively to the character and appearance of the surrounding area.
11. The digital display would be mounted on a base, with the structure positioned perpendicular to the edge of High Bridge Road and visible from within the car park and above the bridge parapet and side railings. It would be orientated towards vehicular traffic travelling along High Bridge Road, as well as vehicles entering the car park. It would also be visible to pedestrians. By reason of its considerable width, height, overall massing and illumination the totem would appear as a visually bulky and conspicuous feature within the street scene. Furthermore, owing to the alignment of High Bridge Road and the relative absence of buildings, vegetation or other features capable of obscuring views, it would be visible from a considerable distance, particularly when travelling towards Springfield Road.
12. As a result, the proposal would detract from views of the riverside corridor and its associated trees and vegetation, which the CAA identifies as 'green fingers', that bring the countryside into the town centre, diminishing the appreciation of features that contribute positively to the character and appearance of the area and the setting of the CA.

13. Whilst I recognise that the level of illumination could be controlled through a planning condition, such measure would not sufficiently mitigate the adverse impact on the street scene or address visual intrusion.
14. I therefore conclude that the proposal would harm the visual amenity of the locality and would fail to preserve the setting, and consequently the significance of the CA.
15. The Council has drawn my attention to policies DM13, DM23 and S3 of the Chelmsford Local Plan (2020) and insofar as they seek to protect visual amenity and the historic environment, I have taken them into account as material considerations. However, powers to control advertisements under the regulations may be exercised only in the interests of amenity and public safety. Accordingly, the Council's policies have not in themselves been decisive in my determination of the appeal.

Public Safety

16. The Council, following consultation with the Highway Authority, objects to the proposal on the basis that it would impede future inspection and maintenance activities associated with the bridge. However, the proposed totem would not be physically attached to the bridge structure and given its limited depth of less than 1 metre and its orientation to the bridge, access to and visibility of the structure would be retained.
17. I have also had regard to the appellant's submission that the advertisement would be supported by a simple steel structure bolted to a foundation, which could be removed if future maintenance or repair works were required. Whilst I have no substantive details before me regarding the practicalities of such an operation, the evidence before me does not demonstrate that the proposal would materially obstruct access to the bridge or prejudice necessary inspection, maintenance or repair works. Consequently, I am not persuaded that the proposal would adversely affect the safe operation of the bridge or give rise to unacceptable public safety concerns.

Other Matters

18. The matter of whether the proposed advertisement would result in less than substantial harm as raised by the Council, or harm to the significance of a designated heritage asset as it is now referred to in the Framework (August 2026) and whether this harm is outweighed by the public benefits, as set out in Policy HE6 of the Framework, are not relevant to matters in this appeal, as the policy only applies to heritage-related consent regimes under the 1990 Act.

Conclusion and Recommendation

19. For the reasons given above, I conclude that whilst there is no harm to public safety, the display of the advertisement would be detrimental to amenity and the setting of the CA. Therefore, the appeal should be dismissed.

J Kirkaldy

APPEAL PLANNING OFFICER

Inspector's Decision

20. I have considered all the submitted evidence and my representative's report and on that basis the appeal is dismissed.

Martin Seaton

INSPECTOR